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CASE #	CASE NAME	HEARING NAME
CVRI2305442	RIVERSIDE FOOD HALL LP VS DHAT CREOLE GRILL LLC	MOTION TO ENFORCE SETTLEMENT BY RIVERSIDE FOOD HALL LP

Tentative Ruling: Plaintiff Riverside Food Hall LP's Motion to Enforce Judgment is granted in part. Judgment is entered in favor of Plaintiff and against Defendants in the amount of \$54,000 (\$73,000 less \$19,000 credit), plus lawful post-judgment interest and any \$100 late fees authorized by Paragraph C; and denied as it seeks entry of the \$88,000 stipulated judgment under Paragraph D; and Plaintiff's request for attorney's fees without prejudice.

CCP § 664.6(a)

CCP § 664.6(a) provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (CCP § 664.6(a).)

Here, Plaintiff has demonstrated that the statutory requirements are met under section 664.6(a). The parties entered into a written Settlement Agreement signed by all parties outside of the presence of the Court on April 30, 2025. (Tessier Decl. ¶ 1.) The Settlement Agreement was filed with the Court on May 21, 2025. The Settlement Agreement also contains an express retention-of-jurisdiction clause under CCP § 664.6. (*Id.*) The Court therefore has jurisdiction to enforce the settlement's actual terms.

Liquidated Damages under Civ. Code § 1671(b)

CCP § 664.6(a) "allows courts to enter judgment under the terms of a settlement agreement," but it "cannot enter a judgment that contains an unenforceable liquidated damages clause." (*Graylee v. Castro* (2020) 52 Cal.App.5th 1107, 1114.) "Section 664.6 does not allow a court to endorse or enforce a provision in a settlement agreement or stipulation which is illegal, contrary to public policy, or unjust." (*Id.* at 1114 [internal quotation omitted].)

Civ. Code § 1671(b) governs liquidated damages provisions in commercial contracts. A liquidated damages clause "will generally be considered unreasonable, and hence unenforceable under section 1671, subdivision [b], if it bears no reasonable relationship to the range of actual damages that the parties could have anticipated would flow from a breach. The amount set as liquidated damages 'must represent the result of a reasonable endeavor by the parties to estimate a fair average compensation for any loss that may be sustained.' [Citation.] In the absence of such relationship, a contractual clause purporting to predetermine damages 'must be construed as a penalty.'" (*Greentree Financial Grp., Inc. v. Execute Sports, Inc.* (2008) 163 Cal.App.4th 495, 499–503 ["*Greentree*"]; see also *Vitatech Int'l, Inc. v. Sporn* (2017) 16 Cal.App.5th 796, 806–08 ["*Vitatech*"].)

Plaintiff contends that the parties stipulated to entry of judgment in the amount of \$88,000 upon default and that the Court must enforce the agreement between the parties and enter judgment in that amount. Defendants oppose, arguing that the \$88,000 figure is \$15,000 more than the \$73,000 settlement of the underlying claim and bears no

reasonable relationship to the damages that could be anticipated from a late payment under the Settlement Agreement. Defendants contend that damages from a late payment are, at most, the time value of money (interest) plus the \$100 late fee the contract itself already fixes, and that the \$88,000 judgment is the pre-litigation demand figure repurposed as a penalty for breach of the Settlement Agreement.

The Court finds that the stipulated judgment provision for \$88,000 is an unenforceable penalty under section 1671(b). This case presents the same legal structure that the California Court of Appeal reversed in *Greentree* and *Vitatech*. In *Greentree*, the plaintiff sued for \$45,000, and the parties settled for \$20,000 in installments. On default, judgment of \$61,232.50 was entered. The Court of Appeal reversed, holding that the parties “did not attempt to anticipate the damages that might flow from a breach of the stipulation. Rather, they simply selected the amount [the plaintiff] had claimed as damages in the underlying lawsuit, plus prejudgment interest, attorney fees, and costs.” (*Greentree, supra*, 163 Cal.App.4th at 499–500.) The court further noted that “the \$61,232.50 amount in the judgment bears no reasonable relationship to the range of actual damages the parties could have anticipated from a breach of the stipulation to settle the dispute for \$20,000. ‘[D]amages for the withholding of money are easily determinable—i.e., interest at prevailing rates.’” (*Id.* at 500.) The judgment was ultimately reduced to \$20,000 plus post-judgment interest and costs. (*Id.* at 501.)

Vitatech presents the most relevant precedent in relation to the facts of this case. There, a claim exceeding \$166,000 was settled for a single payment of \$75,000. On default, judgment in excess of \$300,000 was entered. The Court of Appeal reversed, holding: “the amount of the judgment must reasonably relate to the damages likely to arise from the breach of the stipulation, not the alleged breach of the underlying contract, because it is the breach of the stipulation that allows Vitatech to enter judgment against Appellants.” (*Vitatech, supra*, 16 Cal.App.5th at 810.) The court further held that “the stipulated judgment for more than four times the amount Vitatech agreed to accept as full settlement of its claims is an unenforceable penalty because it bears no reasonable relationship to the range of damages the parties could have anticipated would result from Defendants’ failure timely to pay the settlement amount.” (*Id.* at 801.) The court rejected the argument that the provision was merely a “discount” arrangement: “the stipulation for entry of judgment is not merely a permissible discount provision because the stipulation compromises disputed claims and resolves pending litigation. Although Defendants stipulated to entry of judgment if they did not timely pay, they never admitted liability on the underlying claims or the amount of damages allegedly caused by the breach of the underlying contract.” (*Id.*) The remedy: a new judgment for the \$75,000 settlement sum. (*Id.* at 815.)

Here, as in *Greentree* and *Vitatech*, nothing in the stipulation or record establishes a reasonable relationship between Defendants’ failure to pay the \$73,000 settlement amount in installments and the \$88,000 judgment. The stipulation contains no language indicating that the parties attempted to estimate the damages that would flow from a late payment. The \$88,000 figure appears to be the pre-settlement demand figure, not a reasonable estimate of the harm caused by late payment. As *Greentree* held, damages for the withholding of money are easily determinable—i.e., “interest at prevailing rates.” (*Greentree, supra*, 163 Cal.App.4th at 500.) The Settlement Agreement itself fixes a \$100 late fee per missed payment. (Settlement Agreement ¶ C.) A judgment that adds \$15,000

to the agreed settlement sum bears no reasonable relationship to these readily calculable damages.

The fact that the parties labeled the provision a “stipulated judgment” rather than “liquidated damages” is immaterial. The Court looks to substance, not form. “[A] court will interpret a liquidated damages clause according to its substance, and if it is otherwise valid, will uphold it even if the parties have referred to it as a penalty.” (*Vitatech, supra*, 16 Cal.App.5th at 806.) Here, the stipulation predetermines the amount of damages Plaintiff is entitled to receive if Defendants breach the stipulation by failing timely to pay the settlement amount. The provision establishing the amount of the stipulated judgment is therefore unenforceable unless that amount bears a reasonable relationship to the amount of damages the parties could have anticipated Plaintiff would suffer if Defendants breached their obligation to pay the settlement amount.

Unsatisfied Preconditions

Even if Paragraph D were enforceable, Plaintiff did not establish the contractual preconditions to entry of judgment. Paragraph D provides that a stipulated judgment may be entered only “upon default and failure to pay after ten calendar days has elapsed after written notice to Defendants in care of their legal counsel Joseph Richardson.” (Settlement Agreement ¶ D.) That language imposes two mandatory conditions precedent: (1) written notice of default delivered to Defendants in care of their counsel Joseph Richardson, and (2) the lapse of ten calendar days without cure. The moving party under section 664.6 bears the burden of proving satisfaction of any such conditions.

Plaintiff has not carried that burden. The Vera and Tessier declarations submitted in support of the motion describe only internal communications between Plaintiff’s counsel and Plaintiff’s own manager regarding the payment status. The only reference to communication with Defendants’ counsel is Vera’s statement that on October 17, 2025, he “informed Defendant’s Counsel” that Defendants had failed to make payments and that his office “would be moving forward filing the paperwork to enter the full amount owed for the Judgment plus attorney’s fees.” (See Pl.’s Mot. 4: 8–10.) That single sentence does not establish that formal written notice of default was delivered to Defendants in care of Joseph Richardson, and no such notice is attached to the motion. A statement that counsel would be “moving forward filing the paperwork” does not satisfy the contractual requirement of written notice triggering the ten-day cure period. Mr. Alce further declares under penalty of perjury that he never received a written notice of default addressed to him in care of Joseph Richardson before this motion was filed. (Alce Decl. ¶ 8.) Accordingly, for this independent reason, entry of the \$88,000 stipulated judgment under Paragraph D is not warranted.

Credit for Prior Payments

Although the \$88,000 stipulated judgment under Paragraph D is unenforceable as a penalty and its preconditions have not been satisfied, the undisputed evidence establishes that Defendants owe \$54,000 under the Settlement Agreement, and the Court may enter judgment for that amount pursuant to the settlement’s actual terms under section 664.6. Plaintiff’s proposed judgment seeks \$88,000 without crediting the undisputed \$19,000 Defendants have paid, which includes payments of \$10,000 on June 18, 2025; \$2,000 on July 21, 2025; and \$7,000 on July 29, 2025. (Tessier Decl. ¶ 4; Vera Decl. ¶ 4.) Defendants argue that seeking \$88,000 while ignoring prior payments would result in an improper recovery of approximately \$107,000 on a \$73,000 settlement.

Accordingly, any judgment must credit the undisputed \$19,000, leading to a total due of \$54,000 (\$73,000 settlement minus \$19,000 paid), along with lawful post-judgment interest and any \$100 late fees authorized by Paragraph C of the Settlement Agreement.

Request for Attorney's Fees

Plaintiff seeks \$18,000 in attorney's fees as the prevailing party under the Settlement Agreement. However, Defendants argue that both Paragraph D and Judgment paragraph 1 provide for fees "according to proof" at a "prove-up hearing," and contend that Plaintiff has failed to provide any supporting documentation, such as billing records, a fee declaration, or a lodestar analysis, to justify the request. (Settlement Agreement ¶ D.) As the Settlement Agreement explicitly contemplates a prove-up hearing with evidence presented "according to proof," and in light of Plaintiff's lack of evidentiary support for the requested amount, the Court denied the request for attorney's fees without prejudice, allowing Plaintiff to pursue a properly noticed prove-up process.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400078	ALMAZAN VS W.A RASIC CONSTRUCTION COMPANY, INC.	DEMURRER ON CROSS-COMPLAINT OF W.A RASIC CONSTRUCTION COMPANY, INC. BY QUANTA SERVICES, INC., UTILITY LINE MANAGEMENT SERVICES, INC., QUANTA UTILITY ENGINEERING SERVICES.

Tentative Ruling: Hearing continued to 9/21/26.

Cross Defendants wholly failed to submit a declaration evidencing meet and confer efforts as required by Code of Civil Procedure section 430.41. Cross Defendants are ordered to meet and confer in person, via phone or videoconference with Cross Complainant for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Cross Defendants shall identify the specific causes of action that they believe are subject to demurrer and identify with legal support the basis of the deficiencies. Cross Complainant shall provide legal support for her position that the pleading is legally sufficient or, in the alternative, how the Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Cross Defendants shall 10 days before the continued hearing date set do one of the following: (1) vacate the hearing on the demurrer and motion to strike, and file an Answer; (2) file with the Court a declaration stating the parties have agreed that Cross Complainant will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means (in person, phone, or videoconference) by which the parties met and conferred and identify the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 430.41.)

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party